STANDATA bulletin 23-BCB-007
Building

Houses with a secondary suite

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Purpose

This bulletin is developed to consolidate secondary suite provisions within one document.

Discussion

The prescriptive requirements for houses with secondary suites within the National Building Code – 2023 Alberta Edition (NBC(AE)) are distributed throughout various sections of Part 9.

This bulletin is not a design guide and is intended to be used in conjunction with the NBC(AE).

Note: A standata interpretation pertaining to an attached garage serving a house with a secondary suite can be review at the following link – 23-BCI-035 Attached garage serving a house with a secondary suite

Code References

Division A, Article 1.4.1.2.

1.4.1.2. Defined Terms
Secondary suite means a self-contained *dwelling unit* located in a *building* or portion of a *building* of only *residential occupancy* that contains only one other *dwelling unit* and common spaces, and where both *dwelling units* constitute a single real estate entity. (See Note A-1.4.1.2.(1).)

A-1.4.1.2.(1) Defined Terms.
Secondary Suite
A secondary suite is a self-contained dwelling unit that is part of a house containing not more than two dwelling units (including the secondary suite) and any common spaces such as common storage, common service rooms, common laundry facilities or common areas used for egress. Secondary suites are typically created within an existing single dwelling unit—commonly called a “house”—either constructed as an addition to an existing house or incorporated during the construction of a new house. A secondary suite may have more than one storey and may be on the same level as the principal dwelling unit of the house or be above or below it.

Examples of buildings where secondary suites are permitted include individual detached houses, or where the secondary suite is located in a portion of a building, semi-detached houses (half of a double) and freehold row houses.

Where a building has multiple occupancies, the secondary suite can only be created in a portion of the building that is of residential occupancy. Apartment buildings have more than two dwelling units and are therefore not permitted to have secondary suites.

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A secondary suite is only permitted where approved by the local authority, in accordance with municipal land use bylaws.

Sentences 9.5.5.1.(1) and (2)

9.5.5.1. Doorway Opening Sizes
1) Except as provided in Sentence (2) and Articles 9.5.5.3., 9.9.6.2. and 9.9.6.3., doorway openings within *dwelling units* and within houses with a *secondary suite* including their common spaces shall be designed to accommodate at least the door sizes given in Table 9.5.5.1. for swing-type and folding doors.
2) Doorway openings within *secondary suites* shall be designed to accommodate swing-type and folding doors not less than 1 890 mm high where the ceiling height complies with Sentence 9.5.3.1.(2).

Sentence 9.8.2.1.(2)

9.8.2.1. Stair Width
2) *Exit* stairs serving a single *dwelling unit* or a house with a *secondary suite* including their common spaces shall have a width of not less than 860 mm.

Sentences 9.8.2.2.(3) and (4)

9.8.2.2. Height over Stairs
3) Except as provided in Article 9.8.4.7., the clear height over stairs serving a single *dwelling unit* or a house with a *secondary suite* including their common spaces shall not be less than 1 950 mm.
4) The clear height over stairs that are located under beams and ducting in *secondary suites* shall not be less than 1 850 mm.

Sentence 9.8.6.4.(2)

9.8.6.4. Height over Landings
2) The clear height over landings serving a single *dwelling unit* or a house with a *secondary suite* including their common spaces shall be not less than 1 950 mm.

Sentence 9.9.2.4.(1)

9.9.2.4. Principal Entrances
1) Except for doors serving a single *dwelling unit* or a house with a *secondary suite* including their common spaces, at least one door at every principal entrance to a *building* providing access from the exterior at ground level shall be designed in accordance with the requirements for *exits*.

Article 9.9.6.7.

9.9.6.7. Door Latching, Locking and Opening Mechanisms
1) Principal entrance doors, *exit* doors and doors to *suites*, including exterior doors of *dwelling units*, and other doors in an *access to exit* shall
   a) be openable from the inside or in travelling to an *exit* without requiring keys, special devices or specialized knowledge of the door-opening mechanism, or
   b) be controlled by electromagnetic locking mechanisms in accordance with Sentence 3.4.6.16.(5).
2) Except for doors serving a single *dwelling unit* or a house with a *secondary suite*, and doors to accessory *buildings* and to garages serving a single *dwelling unit*, door release hardware on doors in a *means of egress* shall be operable with one hand and the door shall be openable with not more than one releasing operation. (See also Sentence 3.8.3.6.(4) and Note A-3.3.1.13.(4).)

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3) Door release hardware on doors in a *means of egress* shall be installed 900 mm to 1 100 mm above the finished floor.
4) Except for hotels and motels, a door opening onto a *public corridor* that provides *access to exit* from *suites* shall be designed not to lock automatically if it is equipped with an automatic self-closing device. (See Note A-3.3.4.5.(1).)

Sentence 9.9.11.1.(1)

9.9.11. Signs
9.9.11.1. Application
1) This Subsection applies to all *exits* except those serving not more than one *dwelling unit* or a house with a *secondary suite*.

Sentence 9.9.12.1.(1)

9.9.12. Lighting
9.9.12.1. Application
1) This Subsection applies to the lighting of all *means of egress* except those within *dwelling units* or a house with a *secondary suite*.

Sentence 9.10.15.1.(1)

9.10.15. Spatial Separation Between Houses
9.10.15.1. Application
1) This Subsection applies to
a) *buildings* that contain only *dwelling units* and have no *dwelling unit* above another *dwelling unit*, and
b) houses with a *secondary suite* including their common spaces.
(See Note A-9.10.15.1.(1).)

Sentence 9.35.1.1.(1)

9.35. Garages and Carports
9.35.1.1. Application
1) This Section applies to garages and carports serving not more than one *dwelling unit* or a house with a *secondary suite*.

Sentence 9.10.15.4.(6)

9.10.15.4. Glazed Openings in Exposing Building Face
6) The limits on the area of glazed openings shall not apply to the *exposing building face* of a *dwelling unit* or a house with a *secondary suite* facing a detached garage or accessory *building*, where
a) the detached garage or accessory *building* serves only one *dwelling unit* or a house with a *secondary suite*,
b) the detached garage or accessory *building* is located on the same property as that *dwelling unit* or house with a *secondary suite*, and
c) the *dwelling unit* or house with a *secondary suite* served by the detached garage or accessory *building* is the only *major occupancy* on the property.

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Sentence 9.10.15.5.(4)

9.10.15.5. Construction of Exposing Building Face of Houses
4) The requirements regarding *fire-resistance rating* and type of cladding-sheathing assembly shall not apply to the *exposing building face* or projections from an *exposing building face* of a *dwelling unit* or a house with a *secondary suite* facing a detached garage or accessory *building*, or a garage or accessory *building* facing a *dwelling unit* or a house with a *secondary suite*, where
a) the detached garage or accessory *building* serves only one *dwelling unit* or a house with a *secondary suite*,
b) the detached garage or accessory *building* is located on the same property as that *dwelling unit* or house with a *secondary suite*, and
c) the *dwelling unit* or house with a *secondary suite* served by the detached garage or accessory *building* is the only *major occupancy* on the property.

Article 9.36.1.3.

Section 9.36. Energy Efficiency
9.36.1.3. Compliance and Application (See Note A-9.36.1.3.)
1) Except as provided in Sentences (3) to (7), *buildings* shall comply with
a) the prescriptive or trade-off requirements in Subsections 9.36.2. to 9.36.4.,
b) the performance requirements in Subsection 9.36.5., or
c) the NECB.
2) Compliance with Subsections 9.36.7. or 9.36.8. is deemed to meet the requirements of Clauses (1)(a) or (b). (See Note A-9.36.1.3.(2).)
3) Subsections 9.36.2. to 9.36.4. apply to
a) *buildings* of *residential occupancy* to which Part 9 applies,
b) *buildings* containing *business and personal services*, *mercantile* or *low-hazard industrial occupancies* to which Part 9 applies whose combined total *floor area* does not exceed 300 m^2, excluding parking garages that serve *residential occupancies*, and
c) *buildings* containing a mix of the *residential* and non-*residential occupancies* described in Clauses (a) and (b).
4) Subsections 9.36.5. and 9.36.7. apply only to
a) houses with or without a *secondary suite*, and
b) *buildings* containing only *dwelling units* and common spaces whose total *floor area* does not exceed 20% of the total *floor area* of the *building*. (See Note A-9.36.1.3.(4).)
5) Subsection 9.36.8. applies only to *buildings* of *residential occupancy* to which Part 9 applies.
6) *Buildings* containing non-*residential occupancies* whose combined total *floor area* exceeds 300 m^2 or *medium-hazard industrial occupancies* shall comply with the NECB.
7) *Buildings* or portions of *buildings* that are not required to be *conditioned spaces* are exempted from the requirements of this Section. (See Note A-9.36.1.3.(7).) (See also Article 9.25.2.1.)

Sentence 9.9.4.4.(1)

9.9.4.4. Openings Near Unenclosed Exterior Exit Stairs and Ramps
1) *Unprotected openings* in exterior walls of the *building* shall be protected with wired glass in fixed steel frames or glass block conforming to Articles 9.10.13.5. and 9.10.13.7., where
a) an unenclosed exterior *exit* stair or *ramp* provides the only *means of egress* from a *suite* and is exposed to fire from *unprotected openings* in the exterior walls of
i) another *fire compartment*, or
ii) another *dwelling unit*, ancillary space or common space in a house with a *secondary suite*, and
b) *unprotected openings* in the exterior walls of the *building* are within 3 m horizontally and less than 10 m below or less than 5 m above the *exit* stair or *ramp*.

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Sentence 9.9.4.6.(1)

9.9.4.6. Openings Near Exit Doors
1) *Unprotected openings* shall be protected with wired glass in fixed steel frames or glass block conforming to Articles 9.10.13.5. and 9.10.13.7., where
- a) an exterior *exit* door
  - i) in one *fire compartment* is within 3 m horizontally of an *unprotected opening* serving another *fire compartment*, or
  - ii) in one *dwelling unit*, ancillary space or common space in a house with a *secondary suite* is within 3 m horizontally of the *unprotected openings* serving another *dwelling unit*, ancillary space or common space in a house with a *secondary suite*, and
- b) the exterior walls of the *fire compartments*, *dwelling units*, ancillary spaces and common spaces in a house with a *secondary suite* referred to in Clause (a) intersect at an exterior angle of less than 135°.

Sentence 9.33.1.1.(3)

Section 9.33. Heating and Air-conditioning
9.33.1.1. Application
3) Air duct distribution systems serving one of the *dwelling units* in a house with a *secondary suite* shall not be directly interconnected with other parts of the house.

Sentence 9.10.12.4.(1)

9.10.12.4. Protection of Soffits
1) This Article applies to the portion of any soffit enclosing a projection that is
- a) less than 2.5 m vertically above a window or door, and
- b) less than 1.2 m from either side of the window or door.

(See Note A-9.10.12.4.(1).)

Sentence 9.9.9.3.(1)

9.9.9.3. Shared Egress Facilities
1) Except for *dwelling units* in a house with a *secondary suite*, a *dwelling unit* shall be provided with a second and separate *means of egress* where an egress door from the *dwelling unit* opens onto
- a) an *exit* stairway serving more than one *suite*,
- b) a *public corridor*
  - i) serving more than one *suite*, and
  - ii) served by a single *exit*,
- c) an exterior passageway
  - i) serving more than one *suite*,
  - ii) served by a single *exit* stairway or *ramp*, and
  - iii) more than 1.5 m above adjacent ground level, or
- d) a balcony
  - i) serving more than one *suite*,
  - ii) served by a single *exit* stairway or *ramp*, and
  - iii) more than 1.5 m above adjacent ground level.

Sentence 9.9.4.2.(2)

9.9.4.2. Fire Separations for Exits
2) Where an *exit* is located in a house with a *secondary suite* including their common spaces, the *exit* shall be protected by a continuous smoke-tight barrier of not less than 12.7 mm thick gypsum board installed on

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a) both sides of walls separating the *exit* from the remainder of the *building*, and
b) the underside of floor-ceiling framing separating the *exit* from the remainder of the *building*.
(See Sentence 9.10.9.3.(2) for *closures*.)

Sentence 9.33.4.3.(1)

9.33.4.3. Heating System Control
1) Where a single heating system serves a house with a *secondary suite*, individual temperature controls shall be provided in each *dwelling unit* served by the system.
(See Note A-9.33.4.3.(1).)

Sentences 9.10.11.2. (1) and (2)

9.10.11.2. Firewalls Not Required
1) Except as stated in Sentence (2), a *party wall* on a property line of a *building* of *residential occupancy* need not be constructed as a *firewall*, provided it is constructed as a *fire separation* having not less than a 1 h *fire-resistance rating*, where the *party wall* separates
a) two *dwelling units* where there is no *dwelling unit* above another *dwelling unit*,
b) a *dwelling unit* and a house with a *secondary suite* including their common spaces, or
c) two houses with a *secondary suite* including their common spaces.
2) Where a *building* of *residential occupancy* contains more than 2 houses, a *party wall* that separates any 2 adjacent houses with a *secondary suite* from the rest of the *building* shall be constructed as a *firewall* to create separate *buildings* each containing no more than 2 adjacent houses with a *secondary suite*.

Clause 9.10.19.1.(1)(c)

9.10.19.1. Required Smoke Alarms
1) Except as permitted by Article 9.10.19.8., *smoke alarms* conforming to CAN/ULC-S531, “Standard for Smoke Alarms,” shall be installed in
c) ancillary spaces and common spaces not in *dwelling units* in a house with a *secondary suite*.

Sentences 9.10.19.5.(2)

9.10.19.5. Interconnection of Smoke Alarms
2) *Smoke alarms* in a house with a *secondary suite* shall be wirelessly interconnected or interconnected by hard-wiring so that the activation of any one *smoke alarm* causes all *smoke alarms* within the house with a *secondary suite* to sound. (See Note A-9.10.19.5.(2).)

Sentences 9.32.3.9.(7)

9.32.3.9. Carbon Monoxide Alarms (See Note A-9.32.3.9.)
7) Where CO alarms are installed in a house with a *secondary suite* including their common spaces, the CO alarms shall be wired so that the activation of any one CO alarm causes all CO alarms within the house with a *secondary suite* including their common spaces to sound.

Clause 9.10.8.10.(1)(b)

9.10.8.1. Fire-Resistance Ratings for Floors and Roofs
9.10.8.10. Application to Houses
1) Table 9.10.8.1. does not apply to

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b) houses with a *secondary suite*, where the floor framing is protected on the underside by a continuous smoke-tight barrier of not less than 12.7 mm thick gypsum board, or….

Sentence 9.10.9.16.(4)

9.10.9.16. Separation of Residential Suites
4) Walls and floor-ceiling framing in a house with a *secondary suite* that separate *dwelling units* from each other or *dwelling units* from ancillary spaces and common spaces need not comply with Sentence (1), where the walls and floor-ceiling framing are protected by a continuous smoke-tight barrier of not less than 12.7 mm thick gypsum board installed on
a) both sides of walls, and
b) the underside of floor-ceiling framing.
(See Sentence 9.10.9.3.(2) for *closures*.)

Sentence 9.10.9.17.(4)

9.10.9.17. Separation of Public Corridors
4) Where a *public corridor* is located in a house with a *secondary suite*, a continuous smoke-tight barrier of not less than 12.7 mm thick gypsum board shall be installed on
a) both sides of walls separating the corridor from the remainder of the *building*, and
b) the underside of floor-ceiling framing separating the corridor from the remainder of the *building*.
(See Sentence 9.10.9.3.(2) for *closures*.)

Clause 9.10.10.4.(2)(b)

9.10.10.4. Location of Fuel-Fired Appliances
2) Except as required in the *appliance* installation standards referenced in Sentences 6.2.1.5.(1), 9.33.5.2.(1) and 9.33.5.3.(1), fuel-fired *space-heating appliances*, space-cooling *appliances*, *service water heaters* and laundry *appliances* need not be separated from the remainder of the *building* as required in Sentence (1),
b) where the *appliances*
i) serve a house with a *secondary suite* including their common spaces, and
ii) are located in a *service room* where both sides of any wall assemblies and the underside of any floor-ceiling framing separating this room from both *dwelling units* or their common spaces are protected by a continuous smoke-tight barrier consisting of not less than 12.7 mm thick gypsum board.

Sentences 9.5.3.1.(2) and (3)

9.5.3.1. Ceiling Heights of Rooms or Spaces
2) Ceiling heights in *secondary suites* shall be not less than 1.95 m.
3) Clear heights under beams and ducting in *secondary suites* shall be not less than 1.85 m.

Sentences 9.5.5.1.(2) and (3)

9.5.5.1. Doorway Opening Sizes
2) Doorway openings within *secondary suites* shall be designed to accommodate swing-type and folding doors not less than 1 890 mm high where the ceiling height complies with Sentence 9.5.3.1.(2).

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Sentence 9.8.2.2.(4)

9.8.2.2. Height over Stairs
4) The clear height over stairs that are located under beams and ducting in *secondary suites* shall not be less than 1 850 mm.

Sentence 9.11.1.1.(2)

9.11.1. Protection from Airborne Noise
9.11.1.1. Required Protection
2) Where a house contains a *secondary suite*, each *dwelling unit* shall be separated from every other space in the house in which noise may be transmitted by
a) construction
i) whose joist spaces are filled with sound-absorbing material of not less than 150 mm nominal thickness,
ii) whose stud spaces are filled with sound-absorbing material,
iii) having a resilient channel on one side of the separation spaced 400 or 600 mm o.c., and
iv) having not less than 12.7 mm thick gypsum board on ceilings and on both sides of walls,
b) construction providing an *STC* rating of not less than 43, or
c) a separating assembly and adjoining constructions, which together provide an *ASTC* rating of not less than 40.
(See Note A-9.11.1.1.(2).)

Sentences 9.32.1.2.(3) and (4)

9.32.1.2. Required Ventilation
3) In houses that contain a *secondary suite*, heating-season ventilation need not be provided for
a) *exits*,
b) *public corridors*, and
c) ancillary spaces that are not within a *dwelling unit*, except as provided in Sentence (4).
(See Note A-9.32.1.2.(2).)
4) Where ancillary spaces described in Clause (3)(c) contain exhaust devices, these spaces shall be provided with make-up air in accordance with Article 9.32.3.8.

Superseded

Unless stated otherwise, all Code references in this STANDATA are to Division B of the National Building Code - 2023 Alberta Edition

Issued by the Provincial Building Administrator

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